

SEPARATE OPINION OF M. ANZILOTTI.

[*Translation.*]

I am unable, much to my regret, to agree with the view set forth in the Court's judgment. The statement which follows shows the main grounds of my dissent; I desire to add, however, that I agree, generally speaking, with the separate opinion of Judge M. O. Hudson, which appears below.

1.—The fundamental ground of my dissent relates to the manner in which the question of the admissibility of the appeal ought to have been presented and decided.

The appeal had been submitted under Article X of the Agreement II of Paris, dated April 28th, 1930; its admissibility, therefore, depended upon the fulfilment of the conditions prescribed by that Article.

Two of those conditions, namely that the right of appeal must be exercised within a period of three months, reckoned from the notification of the judgment of the Mixed Arbitral Tribunal, and that the judgments impugned must be judgments upon the jurisdiction or the merits, may here be left on one side; it suffices to say that, for the reasons stated in the separate opinion referred to above, I hold that they were fulfilled.

A question of chief importance—the only question, indeed, which the Court took under consideration—was whether the three judgments of the Hungaro-Yugoslav Mixed Arbitral Tribunal, against which the Hungarian Government appealed, were delivered in legal “proceedings other than those referred to in Article I” of the Agreement. The path to be followed in order to answer this question is quite evident: one has first to determine what are the essential features which characterize the category of “proceedings referred to in Article I”, and then to ascertain whether these features are present in the three suits in question.

The essential features of the proceedings referred to in Article I of Agreement II emerge with perfect clearness from the provisions of that Agreement; it need hardly be said that all the provisions which bear upon these proceedings must be taken into consideration. I think that they may be summarized as follows:

(a) As regards the Parties, the proceedings must lie between the Hungarian nationals and the Agrarian Fund (Arts. I, II and III, etc.). This Fund does not appear in the proceedings as representing Roumania, Czechoslovakia or Yugoslavia, but in

its own name and on its own behalf: for it is upon the Fund that "the responsibility of the defendant" is solely incumbent (Art. I, para. 1, Art. II, Art. III), while Roumania, Czechoslovakia and Yugoslavia are "relieved of all responsibility" (Art. I).

(b) As regards the grounds for the claim, the *causa petendi*, they must be expropriations carried out in application of the agrarian reform, in so far as rights are thereby conferred upon the Hungarian nationals in virtue of Agreement II. For the Mixed Arbitral Tribunal must deliver and frame its judgments "solely upon the basis of the present Agreement" (last part of Art. VII); hence, the provisions of Agreement II can alone be invoked in support of the claim.

(c) Lastly, as regards the object of the claim, the *res petita*, the proceedings in question must be suits in which nothing else is claimed than the indemnity referred to in Agreement II, which consists in a share in the apportionment of the assets of the Agrarian Fund (Art. VIII, paras. 1 and 2, Art. VI).

It may be added that the proceedings in question are suits in which a summary procedure, partly judicial and partly administrative, is employed (Arts. IV and VIII, second para.), and in which the powers of the Mixed Arbitral Tribunal are confined to verifying the fulfilment of the conditions laid down in paragraph 1 of Article VIII, to the exclusion of decisions on questions of principle: it is manifestly in view of these characteristics of the procedure that Article X excludes the right of appeal in the case of judgments delivered in such suits.

If we now examine the applications of the Hungarian nationals in the suits which culminated in the judgments under appeal, we note the following points:

(a) That the proceedings were instituted against Yugoslavia and not against the Agrarian Fund; there is, therefore, a dissimilarity in regard to the parties.

(b) That the applications were based on Article 250 of the Treaty of Trianon, and not upon Agreement II; there is, therefore, a dissimilarity in regard to the ground for the claim (*causa petendi*).

(c) That the object of the claims was the indemnity prescribed by the national legislation, or at any rate—possibly, in the Esterházy application—an indemnity other than that laid down in Agreement II; there is, therefore, a dissimilarity in regard to the object of the claim.

It can also be said with certainty that the procedure observed was not that laid down for agrarian suits, and that the Mixed Arbitral Tribunal did not direct its examination to the points indicated in the first paragraph of Article VIII of that Agreement, but to questions of an entirely different nature and scope.

I therefore feel quite justified in concluding that the suits in which the judgments under appeal were delivered were not the proceedings referred to in Article I of Agreement II, and that the appeal was therefore admissible.

2.—The appeal having been found to be admissible, the Court should have proceeded to examine the Hungarian Government's grounds of complaint against the impugned judgments.

It was from that standpoint, and not from the standpoint of the admissibility of the appeal, that the Court should have examined the question whether the Paris Agreements, and, in particular, Article I of Agreement II, excluded the possibility of proceedings other than the proceedings referred to in that Article being instituted in regard to the agrarian reforms.

If it is certain—as in my opinion it is—that the suits in which the judgments under appeal were delivered, were proceedings other than those referred to in Article I of Agreement II, it is none the less certain that they were proceedings in regard to the agrarian reform.

The Mixed Arbitral Tribunal held that agrarian suits based on Article 250 of the Treaty of Trianon could no longer be instituted after the Paris Agreements. The Hungarian Government's complaint against the judgments of that Tribunal was that they failed to appreciate the fact that the three actions brought by the Hungarian nationals against Yugoslavia, though brought in regard to the agrarian reform, did not fall within the scope of the Paris Agreements.

In my view, the Paris Agreements, judging by their terms, their origin and their purpose, do not contemplate all cases in regard to the agrarian reforms but only certain of these cases, namely:

(a) Actions which had been brought before January 20th, 1930, and in which Hungarian nationals, denying the consistency of the agrarian reforms with Article 250 of the Treaty of Trianon, claimed the restitution of their lands or, alternatively, full compensation.

(b) Future actions, whereby the Agreements, in order to avoid the reappearance of difficulties such as that which had just been settled, afforded Hungarian nationals, who had not yet instituted proceedings, the possibility of obtaining—subject to conditions and time limitations which were strictly defined—advantages corresponding to those granted to petitioners of the first category.

These future actions are regarded as purely hypothetical: “.... legal proceedings which Hungarian nationals may later institute....”; this is the wording consistently used in Article I of Agreement II to indicate this category of cases. It is difficult to avoid the conclusion that this wording would be curiously

ill chosen if it were intended to mean that proceedings of this kind would henceforth be the only method open to Hungarian nationals for obtaining any compensation whatever in respect of lands of theirs expropriated in connection with the agrarian reform.

No other proceedings in regard to the agrarian reforms are contemplated by the Paris Agreements.

3.—Supposing that the actions contemplated by Article I of Agreement II were the only actions in regard to the agrarian reform which could still be brought under the Paris Agreements, it would obviously follow that these Agreements, derogating from the ordinary law, imposed on all Hungarian nationals whose estates had been subjected to the agrarian reform in Yugoslavia and who desired to obtain any compensation at all, an obligation to bring proceedings with this object against the Agrarian Fund.

In my opinion, there is no justification for this view. It is certain that nowhere in the Paris Agreements is to be found any express provision laying down that it is incumbent on Hungarian nationals to bring proceedings against the Agrarian Fund in order to obtain compensation. As stated above, the wording used in Article I of Agreement II rather suggests the contrary. Yet it would have been easy to formulate this obligation and it would have been very natural to do so, since the Agreements laid down a very rigorous system of time limitations, which were very brief, and failure to observe which must involve loss of any compensation.

Not only do the Paris Agreements contain no express provision making it an obligation for Hungarian nationals to have recourse to the Agrarian Fund, but furthermore they contain no provision from which it is possible implicitly to deduce an intention on the part of the contracting parties to impose such an obligation. The only argument which the Yugoslav Government had been able to adduce in this connection is the lump-sum character of the payments which Yugoslavia has to make to the Agrarian Fund, which payments, it is contended, release her from any obligation towards the Hungarian nationals expropriated in connection with the agrarian reform.

This argument is not sound. It is clear that all depends on the purpose which the lump-sum payments were intended to serve. But the relevant provisions, namely, paragraph 2 and the last paragraph of Article 10 of Agreement III, expressly say that the sum which Yugoslavia pays in full discharge of her obligations to the Agrarian Fund, represent a lump-sum settlement in respect of the local indemnities for lands forming the subject of proceedings under Article I of Agreement II. To deduce from this that Hungarian nationals are obliged to bring such proceedings is clearly a *petitio principii*.

In my opinion, therefore, it is impossible to prove and it has not been proved that the Paris Agreements oblige all Hungarian nationals, whose estates have been affected by the agrarian reform in Yugoslavia and who wish to obtain any compensation, to bring proceedings against the Agrarian Fund for the purpose.

It follows that if these Hungarian nationals do not wish to or cannot avail themselves of the advantages afforded them under the special law created by the Paris Agreements, the ordinary law continues to apply to them and they must be treated in this matter on the same footing as nationals.

For these reasons and for others which are stated in Mr. Hudson's separate opinion, my conclusion is that, to this extent, the complaints of the Hungarian Government were justified.

There is no need for me to consider whether the consequences which that Government sought to deduce therefrom, were likewise all justified.

(Signed) D. ANZILOTTI.